

TENTATIVE RULING

Case: **Magallon et al. v. Fairmount Home Owners Association et al.**
Case No. CV2025-2357
Hearing Date: **February 9, 2026** **Department Eleven** **9:00 a.m.**

As a preliminary matter, the Court makes the following rulings:

- Defendants Fairmount Home Owners Association, Silvercreek Association Management and Trident Property Management’s (“defendants”) request for judicial notice of Voluntary Petition for Bankruptcy (Chapter 7) filed by plaintiff Leonela Magallon in the United States Bankruptcy Court, Eastern District of California, Case No. 25-24826 is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453; see *Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 187 [a judicial admission in a pleading is not merely evidence of a fact; it is a conclusive concession of the truth of the matter].)
- Defendants’ request for judicial notice of the audio recording from the October 10, 2025, hearing in Case No. 25-24826 is **DENIED**. (Evid. Code, §§ 452, 453.)
- The Court proposes to take judicial notice of the following records of a court of this state or of the United States: (1) the amended Schedule C filed in Case No. 25-24826; (2) the amended Statement of Financial Affairs filed in Case No. 25-24826; and (3) the amended schedule A/B filed in Case No. 25-24826. (Evid. Code, §§ 452, subd. (d), 455, subd. (a); Seuthe Decl., Exhibits 1 – 3.) The Court shall afford each party a reasonable opportunity before the cause is submitted for decision by the Court to present to the Court information relevant to: (1) the propriety of taking judicial notice of the matter; and (2) the tenor of the matter to be noticed. (Evid. Code, § 455, subd. (a); see *Bucur, supra*, 244 Cal.App.4th at 187.)
- The Court, in its discretion, considers plaintiffs Leonel Magallon, Ximena Arias, and Vincente Arias’ untimely opposition. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”]; see also Opposition, pp. 1-2.)

As the Court is considering the late-filed opposition, on its own motion, the Court **CONTINUES** defendants’ motion for protective order and order staying depositions and motion for judgment on the pleadings to **February 20, 2026**, at 9:00 a.m. in Department Eleven. Defendants may file a reply in support of the motion for judgment on the pleadings by **February 13, 2026**. (See Code Civ. Proc., § 1005, subd. (b).)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.